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May 24, 2021

**Via First-Class Mail and E-mail @
johnncuomo@gmail.com**

**John N. Cuomo
Attorney at Law
11 Fern Drive
Commack, New York 11725**

**Re: DeSousa et. al. v. Calvagno II et. al.
Index No. 600371/2021**

NOTICE TO CEASE AND DESIST

Dear Mr. Cuomo:

As you are aware, this firm represents the Defendant Richard Calvagno II in the above-referenced action.

This CEASE AND DESIST NOTICE is to inform you that your client DeSousa's persistent actions including but not limited to screaming, cursing, verbally abusing Mr. Calvagno from across the street, verbally abusing his parents, purposely blocking Mr. Calvagno's vehicle, have become unbearable. He is directed to stop such activities immediately.

Specifically, on May 21, 2021 at 6:42 am, as Mr. Calvagno started his car, Mr. DeSousa started screaming "Mother Fucker" to Mr. Calvagno. The verbal abuse has been occurring consistently. On May 22, 2021, at 9:15 a.m., Mr. DeSousa used both of his vehicles to block Mr. Calvagno's truck that was parked on the street. On May 22, 2021 at 3:40 pm, Mr. DeSousa started yelling and screaming at his parents about the alleged noise

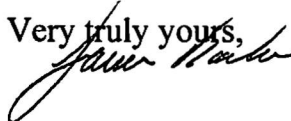
from Mr. Calvagno's car, from across the street. Please note that these events are recorded by Mr. Calvagno.

Mr. Calvagno has the right to remain free from these activities as they constitute harassment, and we will pursue any legal remedies available to him against Mr. DeSousa.

This letter acts as a final warning against Mr. DeSousa to discontinue this unwanted conducted before we pursue a legal action against him. We hope to resolve this matter amicably.

If you do not confirm in writing to us by June 1, 2021 that your client will cease with his actions, we will have no choice other than to seek court intervention.

Very truly yours,



Jason M. Barbara, Esq.

cc: Richard Calvagno II (*via email*)

Warshaw Burnstein LLP (*via email*)
Attorney for Defendant Karcher